

In the Matter of Space Exploration Holdings, LLC Application for Orbital Data Center File No. SAT-LOA-20260108-00016

SUPPLEMENT TO MOTION FOR DISQUALIFICATION

William Stewart (the Petitioner) hereby submits this formal Supplement to the pending Motion for Disqualification of Chairman Carr and Record Correction (filed March 29, 2026). This supplement addresses critical new evidence introduced into the record by the Applicant on May 29, 2026, which further substantiates the Petitioner's ongoing claims of administrative prejudgment, asymmetric regulatory enforcement, and data manipulation.

I. Confirmed Hyper-Density and Orbital Space Grabbing

In its May 29 supplement, the Applicant finally disclosed its specific proposed orbital configuration, revealing a massive layout across six distinct altitude groups spanning from 550 km up to 1,002 km. Of grave concern is Group 1, which seeks authorization to pack 99,900 satellites into a hyper-narrow, 18-kilometer corridor between 550 km and 568 km altitude. This disclosure explicitly validates the Petitioner's previous warnings regarding extreme local density. The Applicant is attempting to use the Commission's regulatory machinery to lock down an unprecedented, exclusive orbital traffic highway under the guise of an experimental data center application.

II. SpaceX Request for an Unprecedented Regulatory Free Pass

The most egregious element of the Applicant's recent filing is Section 4(d), where a blanket waiver is explicitly requested from the Commission's atmospheric reentry rules (47 CFR § 25.114) for all satellites operating above 600 km. The Applicant claims that flexibility is required to dump non-operational satellites into high altitude Earth disposal orbits or heliocentric deep space orbits rather than burning them up in the atmosphere. In reality, the Applicant is requesting formal legal permission to permanently litter upper low-Earth orbit with dead corporate hardware. Bypassing standard deorbiting requirements to avoid the engineering and fuel costs of safe atmospheric reentry is a severe threat to space sustainability, yet it is being framed as an environmental benefit.

III. Circumvention of Standard Collision Software Verification

To bypass the mandatory NASA Debris Assessment Software (DAS) logs required by the Commission to verify a casualty risk of less than 0.0001, the Applicant simply declared that its casualty risk is considered zero. The Applicant argues that because the satellites are designed to fragment, they are completely exempt from submitting the standardized software logs **required of every other space operator**. Allowing a commercial entity to self-certify its risk as zero without the standard verifiable software inputs undermines the entire data-driven foundation of the Space Bureau's regulatory framework.

IV. Clear Evidence of Asymmetric Enforcement

The timing of these record updates provides undeniable proof of asymmetric enforcement by the Commission. While the Commission has allowed the Petitioner's perfected and fulfilled FOIA request (FCC-FOIA-2026-

000548) regarding internal communications and potential prejudgment to sit in complete statutory default, it was simultaneously working behind the scenes with the Applicant.

The Commission actively prompted the Applicant to patch the glaring structural holes, draft sweeping waiver requests, and rewrite its orbital metrics just in time to clear the runway for a massive corporate Initial Public Offering (IPO). The Commission cannot lawfully withhold public processing records from citizens while concurrently facilitating proprietary, eleventh-hour fixes for a favored commercial entity.

V. Conclusion

The Applicant's May 29 filing confirms that this proceeding is being pushed through via unprecedented regulatory shortcuts, data omission, and sweeping rule waivers. The Commission's continued refusal to resolve the Petitioner's outstanding motions while actively guiding the Applicant through the approval process solidifies the appearance of administrative prejudgment. The Petitioner respectfully requests that this supplement be incorporated into the pending Motion for Disqualification and that the Commission halt further processing of this docket until standard transparency and verification requirements are enforced.

Respectfully submitted,

/s/ William Stewart

William Stewart

Petitioner

Dated: June 14, 2026